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State of Michigan

**Draft Injection Well Permit
Wexford Water Technologies, LLC**

**Public Hearing
March 21, 2018**

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STATE OF MICHIGAN

DRAFT INJECTION WELL PERMIT
Wexford Water Technologies, LLC

PUBLIC HEARING
March 21, 2018
Cadillac, Michigan

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APPEARANCES:

US ENVIRONMENTAL PROTECTION AGENCY

Stephen Jann, Presiding Officer
Valoria Robinson
Andrew Greenhagen
Jeffrey Wawczak

MICHIGAN DEQ

Jennifer Ferrigan, Permits and Bonding Unit
Susanne Biteman, Cadillac District Office

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Kathleen Tulick, CSR 4806
Certified Shorthand Reporter

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1 Cadillac, Michigan

2 Wednesday, March 21, 2018 - 7:30 p.m.

3

4 MR. JANN: Now we're going to be moving to the
5 hearing, and this is the opportunity to provide
6 comments. I'm going to begin with a brief opening
7 statement, I don't know if Michigan would like to as
8 well, and then we will call the folks who have signed
9 up at the door to make a statement. I think we have 37
10 folks in total, and that translates to about 3 minutes
11 per person.

12 And you'll recall this is our second public
13 comment period. So taking together those two comment
14 periods together exceed 60 days, and people can still
15 submit written comments to us until Friday.

16 And, also, when the hearing ends at 9:00 we will
17 be here, and perhaps the State will be here too, to
18 talk one on one with folks if you have additional
19 questions.

20 PUBLIC VOICE: Where can people submit public
21 comment?

22 MS. FERRIGAN: Yeah.

23 MR. JANN: To Andrew.

24 MS. FERRIGAN: I messed it up, I'm sorry.

25 MR. JANN: I think I introduced Jennifer and

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1 Valoria at the beginning. They will -- at least
2 Valoria will be available to attempt to answer your
3 questions, if you have any going forward. And beyond
4 that, the State folks will be here as well to answer
5 questions.

6 Then we do have a court reporter here, and I would
7 ask that when you begin your remarks you state and
8 spell your last name, and then you direct your remarks
9 toward the court reporter, so she can pick them up and
10 report them.

11 Let me mention that we will go all formal on you
12 and we are not going to be responding to your comments,
13 and I hope folks got a lot of questions answered prior
14 to our previous time, and we will be available later to
15 answer your questions as well.

16 So, good evening. Again, thanks for coming. My
17 name is Steve Jann. I'm the chief of the Underground
18 Injection Control branch at EPA Region 5 office in
19 Chicago. You've met Andrew. You may have met Jeff
20 Wawczak and Valoria Robinson. And as I said at the
21 outset, Andrew is a geologist, Valoria is an
22 environmental protection specialist, and Jeff is an
23 environmental scientist.

24 So this is a hearing, at least for our part, on
25 EPA's proposal to issue a permit to Wexford Water

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1 Technologies for a Class I injection. Wexford plans to
2 use the well to inject wastewater, principally
3 leachate, from the Wexford County Landfill.

4 So we're pleased to have the opportunity to listen
5 to your comments. The comment period is open until
6 midnight on Friday, the 23rd. If anyone would like to
7 make a comment, either spoken or in writing, they can
8 do so tonight or they can do so in writing by the 23rd.
9 The written comments can be sent to EPA by email or
10 regular mail, and by that, directed to Andrew
11 Greenhagen; and if you are mailing your comments,
12 please be sure that they are postmarked by the 23rd.

13 So we're holding this hearing in accordance with
14 the Safe Drinking Water Act. It's designed to allow
15 you to make comments for EPA to consider when we're
16 making our final decision. All comments that we
17 receive during this hearing and during the current
18 comment period, as well as those we received in the
19 first comment period that ended in November, become
20 part of the official record for the draft permit.

21 We will not respond to your comments this evening.
22 However, we will review all the comments after the
23 hearing, and prepare a written response to the
24 significant comments. And the time that will take will
25 depend upon the number and the complexity of the

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1 comments.

2 Once that response is complete, EPA will send it
3 to all who commented or participated in this hearing,
4 and then EPA will make a decision to either issue or
5 not issue the permit final.

6 If EPA issues the permit, the permit would
7 authorize Wexford to construct and operate one Class I
8 injection well.

9 So we announced the first public comment period on
10 the draft permit back on October 28, 2017, and we
11 didn't at that time receive comments in the case,
12 significant interests, in the draft permit, and that's
13 why we're here tonight.

14 We published the hearing announcement in the
15 Cadillac News on February 16, and we also posted that
16 announcement on our web page. On the same date EPA
17 mailed or emailed announcements to interested parties,
18 local government officials, and state and federal
19 agencies.

20 So a public hearing gives you the opportunity to
21 tell EPA whether you feel the proposed permit is
22 consistent with the Safe Drinking Water Act or not, as
23 well as the regulations under that law, and whether the
24 facts as we've determined them to date are accurate.
25 Our role is to listen to the comments that are made.

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1 The final permit decision may be appealed to a
2 group within EPA that's known as the Environmental
3 Appeals Board by any person who submits comments during
4 either of the comment periods or participates in the
5 hearing.

6 If you wish to make a statement, please be sure
7 that you provide your information either to Valoria or
8 to Jeff, I don't see him now, and we will do our very
9 best to accommodate you. Even if you choose not to
10 make a statement but want to receive a copy of any
11 response for the final permit decision, make sure you
12 have indicated so on the sign-in sheet at the table.

13 So, going forward, we want to make sure that
14 everybody who wants to say something gets that
15 opportunity, and we have a little bit less than an hour
16 and a half available to make that happen. And so to
17 this point 37 people have indicated that they want to
18 speak, and that translates to about 3 minutes per
19 person. And if additional folks come up to Valoria
20 saying that they want to say something, I might have to
21 adjust that time.

22 You are certainly free and invited to give us any
23 written comments that you've brought with you to the
24 extent that you can't cover them during the oral part
25 of your comments. And those written comments can be as

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1 long as you like.

2 So I'm going to turn it over just in a moment to
3 the State, but we generally begin by inviting elected
4 officials to comment first, since they speak on behalf
5 of many, and then we will call people in the order in
6 which they signed up to speak.

7 So let me turn it over now, and then we will
8 shortly get to the folks who want to comment.

9 MS. FERRIGAN: Thank you. The purpose of the DEQ
10 participating in tonight's meeting is to answer
11 questions and receive public comment on Wexford Water
12 Technologies' permit application to drill and operate a
13 nonhazardous waste disposal well, and we are receiving
14 comment now.

15 Please note that the DEQ public comment period
16 ends on Wednesday, March 28, 2018 at 5:00 p.m. A copy
17 of the permit application can be found on our website
18 at www.Michigan.gov/deqland. The "mineral wells" tab
19 has information on this application and also a link to
20 download or view the application.

21 Please submit any additional comments in writing
22 to our email inbox at [Deqogmdpubliccomments@](mailto:Deqogmdpubliccomments@Michigan.gov)
23 Michigan.gov or by US mail to DEQ OGMD in regards to
24 comments for Wexford Water Technologies' application,
25 PO Box 30256, Lansing, Michigan 48909. That

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1 information should be on the DEQ handout as well.

2 The DEQ will consider all comments made both
3 spoken tonight and submitted as a written comment.
4 These comments will be considered relative to the
5 regulatory standards of Part 625 Mineral Wells when
6 making a decision on this permit application.

7 If during the hearing portion of tonight's meeting
8 you have a question, some of the DEQ staff that we
9 introduced earlier will be available outside of the
10 auditorium, if you wanted to, you know, have any
11 questions answered. Thank you.

12 MR. JANN: Okay. Let's start. So, as I
13 mentioned, I'm going to invite elected officials to
14 offer their comments first, and I understand that the
15 first person on my list just happens to be a county
16 commissioner, Mr. Michael MacCready.

17 MR. MacCREADY: 3 minutes, huh? I'm used to that.

18 MR. JANN: If you would, please.

19 MR. MacCREADY: I'm going to try.

20 MR. JANN: Then do, please, say your name and
21 spell your last name for our court reporter.

22 MR. MacCREADY: Michael Herbert MacCready,
23 M-a-c-C-r-e-a-d-y. She's not typing. But my name is
24 Michael MacCready, and I have a few questions and
25 thoughts for you.

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1 First, and I'm just starting to learn how to talk
2 with dentures, so I hope you'll give me a break. Just
3 whose interests are you here to represent; the citizens
4 of the immediate area involved in Wexford County or the
5 business requesting this questionable permit?

6 Also, please think about the names of your
7 agencies; the Environmental Protection Agency, and the
8 Department of Environmental Quality. Please think
9 carefully about this question, because in a few months
10 those attending this meeting and the citizens of this
11 area in Wexford County will know who you represent here
12 tonight by your finding. Also, please realize,
13 alternative technologies exist to handle this leachate.

14 Second, why is it that attachment F, titled Source
15 of Analysis of Waste, the last attachment of the permit
16 application that you guys looked at, uses figures from
17 January 22, 2015? When it's certain that more recent
18 figures are available and could have been used. If
19 more recent figures would have been used in the
20 permit's waste analysis section, it could have been
21 very different and probably drastically higher.

22 Now, I'm not a chemist or trained in the chemical
23 analysis field, but I can't seem to find any mention in
24 this permit application of one of the basic chemical
25 compounds in the landfill leachate; ammonia. I don't

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1 believe it's even mentioned in the permit application.
2 Isn't ammonia the most intrusive smell a landfill can
3 produce?

4 It seems funny that on the date used in the permit
5 application and attachment F, waste source analysis,
6 under leachate analysis, January 2015 were used, while
7 a letter addressed to Mr. Don Shotkey, Wexford County,
8 LLC, the landfill, the guy who ran it, from the City of
9 Cadillac Utilities Department subject to IPP report,
10 Industrial Pre-treatment Program report, dated
11 12/21/15, the NH3 and ammonia, and the F nitrogen
12 ammonia T level was actually 255 parts per million, and
13 for the month of January an average of 198.79 parts per
14 million were reported. Also, in the remarks from this
15 letter noted violations in the level of both nickel and
16 copper.

17 While in January 2017 IPP report, the month, the
18 average was 365.57 parts per million, and a high of 438
19 parts per million.

20 Just why is a deep injection well necessary or
21 even needed by American Waste, LLC at the Wexford
22 County Landfill, while American Waste owns and operates
23 through subsidiaries other companies or LLCs -- is that
24 3 minutes?

25 MS. ROBINSON: Yes.

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1 MR. MacCREADY: Well, I can give you the rest of
2 these. But they've got a well about 37 miles away that
3 they could use, that actually the landfill leachate can
4 go in. So I tried.

5 MR. JANN: Thank you very much.

6 MR. MacCREADY: Here's my written.

7 MR. JANN: Thank you very much. Do we have any
8 other elected officials?

9 MS. NICHOLS: Right here, sir.

10 MR. JANN: Okay. Who wants to speak, I should
11 say? Please come forward, if you are.

12 MS. NICHOLS: Good evening. My name is Judy
13 Nichols. I'm commissioner of District 8, which is
14 Haring Township and part of Cedar Creek now. I want to
15 thank you very much for doing this. This is not easy,
16 but it's not easy for the people sitting behind me
17 either. A lot of these citizens are here because
18 they're passionate about this exact issue facing them,
19 and some of them are consumed with this. This has been
20 part of their lives for many years.

21 So if you look out on these faces tonight, please
22 look and realize these are the lives you are affecting,
23 these are the lives that you are making decisions for
24 when you consider this request.

25 The other thing, and I'm glad you shared, that

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1 there were 50 to 100 emails or, you know, people that
2 had communicated with you, because maybe those are
3 voices that couldn't be here this evening, but want to
4 share their opinion with you.

5 On the other side, I want to thank Vicki. I
6 stopped by the landfill today, and Vicki gave me time,
7 she answered questions I had, and I appreciate that. I
8 also asked her how many people have stopped in and
9 chatted with them and asked questions, and not many do.
10 Yes, ma'am.

11 MS. ROBINSON: You still have two minutes.

12 MS. NICHOLS: Okay. I think that's important. I
13 think in my training, dialoguing and talking with each
14 other has been critical into learning, you know,
15 purposes and things that we are facing.

16 So I just want to speak on behalf of these people
17 tonight though, and thank them for being here. And
18 listen to them, look at them, find out their heart in
19 this matter, because they have been deeply moved by
20 what's happening and what their lives have been
21 affected by, including property values and their
22 futures. Thank you very much.

23 MR. JANN: Okay. Thank you. There's an elected
24 official approaching for our comments. Do we have a
25 second or an elected official in the cube, there toward

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1 the back?

2 MR. BROWN: My name is Garry Brown, B-r-o-w-n.
3 You know, we respect your education, and I, for one,
4 certainly believe in science and what it can achieve
5 and what it can accomplish. However, I've heard a
6 couple of comments tonight that there are a lot of ifs
7 in what we're doing. We hope and pray that this will
8 go off without any hitches, if it is approved. But I,
9 for one, would ask you as the mayor of Manton and
10 speaking for the people of Manton to err on the side of
11 caution and of concern for these people that are behind
12 us.

13 I live about five miles from the site over in
14 Manton, but many of these people have it right in their
15 backyards. I personally am really concerned, and I
16 know that human error causes a lot of things that
17 happen when we have problems in wells or water or
18 whatever, there's a lot of human error involved.

19 This is going to be monitored, a self-monitoring
20 system more than being inspected by you. If you were
21 going to be in there more often we might feel a little
22 better, but you are going to rely upon this company,
23 this limited liability company, to produce reports for
24 you, and these are going to be subjective reports, and
25 they can be turned in however they want to turn them

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1 in.

2 So the biggest issue I see is if we do run into a
3 problem, who's going to bear the expense? Manton has
4 invested a lot money in infrastructure. If this should
5 migrate to our water system, where we've already spent
6 a lot of money, each individual on their water bills,
7 it can be catastrophic, as it is for some of these
8 people.

9 A limited liability is where a person's financial
10 liability is limited to a fixed sum, most commonly the
11 value of a person's investment in a company or
12 partnership. That's what worries me. When we're going
13 to give this to a 2 1/2-year-old company a permit, why
14 didn't American Waste apply for this permit for
15 themselves? They have a lot of assets. I don't know
16 what -- I can't find out what this company, this
17 Wexford Water Technologies, what their assets are and
18 how responsible they are going to be.

19 So, please, err on the side of caution and turn
20 this thing down. Thank you.

21 MR. JANN: There's an elected official
22 approaching. Are there any other elected officials who
23 want to speak?

24 PUBLIC VOICE: I'm an appointed.

25 MR. JANN: Okay. Appointed, you count.

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1 MR. SOLOMON: Good evening. I'm Michael Solomon.
2 I'm Wexford County Drain Commissioner, and I'm also
3 senior hydrologist with Restorative Lake Sciences.
4 I've worked in this area for over, well, just about 50
5 years, as also senior hydrologist with US Forest
6 Service. So I'm very familiar with water resources in
7 this area.

8 The water resources of Wexford County are really a
9 unique resource. The deep sand aquifers that are found
10 here produce clean water and even flow that produces
11 rivers that are of the utmost and highest quality, and
12 the fisheries from those rivers are also unique. These
13 rivers are cited in hydrology texts around the world.
14 They are just unique systems, and they need to be
15 protected, because they are so porous and the
16 infiltration in these systems is very quick.

17 There are alternate ways to treat this leachate,
18 including what's been done in the past, the continued
19 treatment at the Cadillac Wastewater Treatment Plant,
20 which, you know, is a treatment plant that's been run
21 extremely well for this community for literally
22 decades. Also, evaporation and use of the gas system
23 in the landfill is a technique that's used in many
24 other landfills, and it would be a good alternative.

25 The Wexford County Landfill has a history of

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1 challenging landfill issues, including groundwater
2 contamination.

3 The citizens of Cedar Creek Township have had a
4 public water system imposed on them that most of them
5 did not want. They were not allowed to have deep wells
6 drilled and paid for by Wexford County, because the
7 aquiclude was not considered tight enough or extensive
8 enough to allow those deep wells to exist.

9 So this notion that we have heard up here that
10 this aquiclude, that is 30 feet deep and is going to
11 protect it, was determined by MDEQ not to be adequate
12 to allow wells to be drilled through it for each
13 individual owner. It would have been a cheaper
14 alternative than what we ended up putting in place.

15 Many of these citizens were marginalized and
16 disrespected by those managing the landfill, and that's
17 why a lot of these people are really upset with the way
18 they are going. Their voices, they do not feel, have
19 been heard, and I agree with a lot of them. These
20 citizens have been told in the past that they would not
21 be harmed by contamination, and now we're going to
22 bring waste from at least a third of northern Michigan
23 into Wexford County and treat the leachate at this
24 site.

25 MR. JANN: We're at 3 minutes.

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1 MR. SOLOMON: Really?

2 PUBLIC VOICE: He can have my 3 minutes.

3 PUBLIC VOICE: He can have my 3 minutes.

4 MR. JANN: Okay. Please, continue.

5 MR. SOLOMON: Wexford County spent nearly \$10
6 million addressing the landfill problems. We still
7 have continuing liability if anything goes wrong.
8 There is no soil erosion and sedimentation control for
9 the landfill. We were talking about one for the well,
10 but there's not even one for the landfill. The people
11 that own it need to apply for that permit and they're
12 in violation of state app.

13 Okay. All of the impacted municipalities in this
14 area have passed a resolution against this well, and I
15 think, you know, they represent literally -- well,
16 Wexford County has 32,000 people in it, so they
17 represent a large number of people.

18 In my opinion, EPA should look at viable
19 alternatives and prepare an environmental impact
20 statement. You know, this is a significant project,
21 and why a determination is not being completed under a
22 environmental impact is kind of beyond me. We had to
23 do one for Timber Sills.

24 EPA has the authority to deny this permit, and I
25 believe the citizens of Cedar Creek deserve this

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1 action. Any permit that would be approved should be in
2 the name of the owners of the landfill. It shouldn't,
3 in my opinion, be allowed to be passed on to a third
4 party. Thank you very much.

5 MR. JANN: Thank you, sir. I think two people
6 volunteered their time, and we only used the time of
7 one. So one of the two can still comment at a later
8 time.

9 Next, I'd like to invite this gentleman here, the
10 appointed official.

11 MR. PECCIA: Good evening. My name is Marcus
12 Peccia, P-e-c-c-i-a. I'm the city manager for the City
13 of Cadillac, Michigan, and I really do appreciate the
14 time afforded this evening to make some remarks on the
15 record. The remarks I'm going to make are simply some
16 excerpts from a resolution opposing the issuance of
17 this permit that the City of Cadillac City Council
18 approved before the new year as a part of the initial
19 public commenting section.

20 First and foremost, the City of Cadillac community
21 along certainly with the residents of the City of
22 Manton, where the proposed well site, injection well
23 site in Wexford County, State of Michigan, we are all
24 very exceedingly concerned about the potential
25 contamination of the groundwater, groundwater not just

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1 of the lakes and rivers, but of the potential spread of
2 that contamination throughout the whole area and the
3 release of the wastewater of the leachate to the
4 environment.

5 We're also certainly concerned with the welfare of
6 its residents and the wider community, the quality and
7 reliability of underground water resources, and the
8 protection of the natural resources in the city, county
9 and state that are certainly very vital to the growth
10 and economic vitality of not just the city but also all
11 the surrounding communities.

12 Due to the proximity to and the nature of the
13 water supply into the lakes and rivers within the city
14 and surrounding communities, the disposal of wastewater
15 and/or leachate at this proposed site we do believe has
16 significant risks to adversely impact, as previously
17 stated, all of the citizens, the environment and the
18 economy by contaminating the water supply, and the
19 incredibly valuable and irreplaceable resources of the
20 city, the county and state, including, again, its lakes
21 and its rivers.

22 As mentioned earlier tonight, we do believe that
23 there are superior alternative options that are
24 available for the proper treatment and management of
25 this leachate coming from the county landfill that

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1 would not present the same environmental harms and
2 risks. The treatment of the leachate currently comes
3 through the city's industrial pre-treatment program and
4 is processed through our wastewater treatment facility.

5 We've been doing this for over 20 years, just as
6 an aside, and in 2016 discharged approximately 14
7 million gallons of treated leachate safely into the
8 Clam River. The following contaminants that were
9 treated and removed from the Wexford County Landfill by
10 the city through the industrial pre-treatment process
11 through our wastewater treatment plant are dangerous
12 and include known carcinogens in contaminate such as
13 the following: Cadmium, lead, nickel, chromium,
14 arsenic, benzene, ethylbenzene, ammonia, silver, copper
15 and toluene.

16 I heard the buzzer go off. Good luck with the
17 rest of your hearing.

18 PUBLIC VOICE: He can have my 3 minutes.

19 MR. JANN: Okay. Very good. Please continue.

20 MR. PECCIA: Okay. I will be brief. As
21 previously mentioned, the aforementioned contaminants
22 are safely removed and clean water is discharged in
23 accordance with EPA and MDEQ prescribed National
24 Pollutant Discharge Elimination System permit limits.

25 You know, just to recap, therefore, we really do

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1 believe, we being the city, as we put it on the public
2 record ourselves through our resolution of opposition,
3 we do believe that there are better or superior
4 alternative ways of treating this leachate. Certainly,
5 we would advocate that the leachate continue to be
6 processed through our wastewater treatment plant. We
7 believe that is what is ultimately in the best interest
8 for the environment and for the whole Cadillac area.
9 So thank you very much for your time.

10 MR. JANN: Thank you. I will call Beverly Monroe,
11 please, and then the next person after Ms. Monroe is
12 Mike Smith.

13 MS. MONROE: Beverly Monroe, M-o-n-r-o-e. I
14 previously asked about why the third casing of your
15 well was not extended below the USDW limit, and I think
16 you said that that stops at the clay layer. I would
17 like to reiterate on what Mr. Solomon said, that clay
18 layer might be 25 feet there, but not too far away the
19 Wexford County Board of Public Works in their studies
20 found that the clay layer varied a lot and that there
21 were a lot of gaps in that clay layer.

22 So I think if you were to be wise, you would go
23 much deeper with that third layer and do a good job to
24 start with. So you can eliminate some problems down
25 the road.

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1 MR. JANN: I invite Mike Smith, and after
2 Mr. Smith I invite Jeff Dietlin.

3 MR. SMITH: Good evening. My name is Mike Smith.
4 I live in Northville, Michigan, just outside of Ann
5 Arbor. I'm with a company called Digest Organics.
6 We're a specialty company that treats very difficult
7 water, such as leachate. We started our company two
8 years ago. We currently have a system up and running
9 in the state of Wisconsin, where we're processing
10 20,000 gallons a day of dairy manure that comes out of
11 a large cattle type farm. That system has proven very
12 successful.

13 Back in January we were approached by a landfill
14 in southeast Michigan to take a look at their leachate
15 for treatment. So we went out and took a sample of
16 their leachate, and we processed it at our facility in
17 Ann Arbor, and the results were pretty successful. I
18 have a picture here tonight that I can pass around the
19 room to show everybody.

20 Leachate, I compared the analytical parameters of
21 this leachate with the submission for this well,
22 injection well. The chemistries are very similar with
23 the exception of a few parameters. We were able to
24 recover 95 percent of the volume as clean dischargeable
25 water that can either go back into the landfill's

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1 stormwater pond or we could obtain either an MPDS
2 discharge permit or a groundwater discharge permit
3 through MDEQ with this water.

4 The dark container or beaker contains all of the
5 contaminants, the metals, phenolics, ammonia, the
6 typical things you find in leachate, and only 5 percent
7 of that would have to go to a permitted disposal
8 facility.

9 So I wanted to come up here today. This is an
10 area that we're aggressively pursuing. Landfill
11 leachate treatment is not just a problem here in
12 Cadillac, Michigan. This is a problem out all over the
13 country, in Florida.

14 A lot of people don't know that wastewater
15 treatment plants slowly and surely over the last 20
16 years have changed their method of disinfection.
17 They've gone from chlorination to UV lamps, UV light,
18 which is pretty similar to the lights up here, and
19 leachate is a very dark-colored liquid. So it's
20 interfering with the ability of these disinfection
21 lamps to properly do their job.

22 So that's another reason why treatment plants are
23 starting to go back to their landfill customers and
24 asking them to come up with alternative means, and
25 that's what we have.

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1 So I would be more than happy to pass this around
2 the room. I'll be in the back after the hearing is
3 over, if anybody wants to talk to us about it. We can
4 certainly come up here and get 35 to 40 gallons of the
5 leachate from the landfill, and we can take it to our
6 lab in Ann Arbor and we can process it, and we will be
7 more than happy to share the results with everybody,
8 including the applicant. Thank you.

9 MR. JANN: Thank you. I will invite Jeff Dietlin,
10 followed by Larry Burkett.

11 MR. DIETLIN: Hello. My name is Jeff Dietlin,
12 D-i-e-t-l-i-n, and I'm the utilities director for the
13 City of Cadillac. So I actually run the wastewater and
14 water plant in Cadillac. And, again, thank you, guys,
15 for coming. I know it's like we're pounding on you all
16 the time, and we don't mean it that way, I don't think.

17 Up front I want to say, we get paid to treat the
18 leachate. So just getting that out of the way. The
19 city does receive a payment to treat the leachate. But
20 I think the best management practice, that's something
21 we do, would be to treat it now rather than bury it and
22 hope over time that it gets treated going through the
23 ground. And we have the ability to treat it now, and
24 we have been treating it now.

25 And I heard somebody made the comment that

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1 currently the landfill is trucking waste away also to
2 another well. We can take more at the landfill. We
3 can't take it in slugs, but if it's a steady diet, at
4 one time we were getting 70,000, 80,000 gallons of
5 leachate a day from the landfill, but they were running
6 seven days a week. So we were taking a huge quantity
7 of leachate there, that, now that they are bringing it
8 during the week only, we have to build up to that where
9 we can take it at the wastewater plant and actually
10 treat it.

11 Another one we heard about, the testing in the
12 past through. We test for a lot of stuff there. We
13 test for NPDS and biosolids. We actually produce a
14 Class A EQ, exceptional quality, biosolids, which you
15 can put on human food crops. That stuff is tested a
16 bazillion ways, and we do not see any effect from the
17 leachate on this product. We could actually take this
18 product, it's a fertilizer, and we could put it on the
19 human food crop by the EPA's permission and it would be
20 okay. So the leachate isn't affecting us there.

21 Again, if possible, it would be great if we could
22 limit the leachate, if it is in this well, exposed to
23 only this landfill, if the EPA would say only this
24 landfill, only this time, no modifications on the
25 permit, that would be great. I know maybe you can't,

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1 but, again, the fear is that it's going to draw outside
2 leachate from some place else, and we will be doing
3 other people's business.

4 And last, somebody talked about the IPP violations
5 that the company had. Again, the violations happen,
6 but the cadmium was talked about, and I don't know what
7 the other metal was, again, we recapture that at the
8 wastewater plant. We introduce that back into the
9 nature as a micronutrient for plants to use to grow.
10 So, actually, this stuff, after we process it, isn't as
11 bad. It's good, actually, once we process it. But, I
12 guess, that's all I have to say. So thank you.

13 MR. JANN: Thank you. Larry Paquette, followed by
14 Daniel Sutton, please.

15 MR. PAQUETTE: I'll spell that for you. It's
16 P-a-q-u-e-t-t-e. I am a neighbor of the landfill.
17 I've been dealing with this for half of my adult life.
18 Eddie and Mike, you've not been good neighbors, and you
19 know it. You are destroying our lives and our
20 properties for the sake of a hundred dollar bill in
21 your pocket. That's all they are doing this for.

22 So you all speak -- you spoke about ifs, you were
23 on TV and you spoke about ifs; if this is done, if they
24 follow the rules, if everything is done right. If, as
25 an engineer that I've been all my life, if doesn't cut

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1 it. It doesn't work. If is just, it's an if.

2 So now you are asking if. The history of this
3 landfill starting in 1970 was; if you do this, it won't
4 get contaminated; if we put it there, it won't get
5 contaminated; if you have 500 foot setbacks, it won't
6 get contaminated, nothing will go wrong. The history
7 isn't there. It's not going to happen. The if is if
8 and when, if and when this will happen, and it will.

9 Andrew, I understand, you are from Chicago, you
10 don't live here, you don't care if it's in your
11 backyard, you are all for it. You said, you told me,
12 it takes numbers of people, if you get a great number
13 of people here, maybe we won't let this happen. Is
14 there enough people here?

15 PUBLIC VOICE: No, we're too small of a community.

16 MR. PAQUETTE: I don't know how many people it
17 takes. Is it 10, 20, 30? How many lives? I don't
18 know. I can't trust Eddie and Mike. I'm saying your
19 name, because I want them to know who you are and not
20 as American Waste or not as Wexford Waterworks. There
21 are people here. This is people. It's got to stop
22 being about money at some point in time.

23 I've had it up to here. I warned the board of
24 commissioners a year ago; I said call Eddie, it stinks.
25 It stinks to high heaven. Les called you.

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1 PUBLIC VOICE: Every morning it stinks.

2 MR. PAQUETTE: Every morning it stinks. He called
3 you. He called you every day. I warned you, Eddie.
4 We will sue you. We will do this again. We will go
5 through the whole thing, and then we will have to drag
6 you guys into it, and we'll have to drag the DEQ into
7 it again. We're tired. It has to end, and you guys
8 can end it for us.

9 Just this one little injection well. There is,
10 what did Michelle say, 30 in the state? What's one
11 more, huh? It's not needed. Thanks, guys.

12 MR. JANN: Daniel Sutton, and then John Fuscone.

13 MR. SUTTON: I'm Daniel Sutton, S-u-t-t-o-n. I'm
14 a half a mile from out my back door from the dump. My
15 statement is, the State of Michigan is on one of the
16 largest clean water aquifers in the world. It's
17 surrounded by one-fifth of the world's fresh water
18 supply, and I stand here, sat here in this room, and I
19 hear the DEQ and the EPA, Environmental Protection
20 Agency, saying that it don't matter. They are going to
21 dump this stuff in the landfill, the landfill is going
22 to push it down in the ground, and you are trying to
23 convince us that it's never going to come back up.
24 That is a bunch of crap, as far as I'm concerned.

25 Our grandchildren's children will be dying like

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1 flies, and you guys won't be around here to see it, but
2 you don't care. That's what's bothering me, okay.

3 The people at the landfill, see, I believe that if
4 you've got to work after dark, what you are doing is
5 not right. The landfill has banging up there 24/7, all
6 night long. It keeps us awake. We wake up to, it
7 sounds like they are already putting the well in to me.

8 You guys say that they are going to govern
9 themselves? I'm sorry, that's not adequate protection
10 for the people.

11 I mentioned once before, and I'll give you this
12 report, in 2003 there was an injection well, and big
13 oil companies decided they had contaminated waste they
14 had to get rid of, and they backed it up to the well,
15 nobody done anything about it, dumped it in there, and
16 that's it.

17 We the people, I've owned my property since 1971,
18 I didn't buy it to make profit. I bought it because it
19 belonged to my wife's family. We want to keep the
20 fresh water in Michigan here. We don't want
21 contaminated water. You can't say you are going to
22 protect us from contaminated water. Plus, the dump has
23 already contaminated 51 households around my area.
24 Thank you.

25 MR. JANN: Mr. Fuscone, followed by Nancy Scungio.

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1 MR. FUSCONE: Good evening. John Fuscone,
2 F-u-s-c-o-n-e. Thank you. I believe Gary, Mike and
3 Marcus have all covered this very well. They
4 understand and explained the problems. But I think the
5 real issue here is money, and only money. The company,
6 American Waste, that's all they are in business for is
7 to make money, and by the additional costs that they
8 incurred with all of this leachate that has escalated
9 since they bought the landfill, because of the amount
10 of waste that's going into that landfill today.

11 And with the additional 90 plus acres they intend
12 to, you know, put in the additional cells, like the
13 cell H, which is under construction and under their
14 operating, their plan, they have nine more cells along
15 Old 131, the leachate is going to multiply. And what's
16 the answer? Dig a well, put it in the ground.

17 They could care less. They just want a profit,
18 but at our expense, and that's what I'm concerned
19 about. They are not here. We don't know what's going
20 to happen 20, 25, 30 years from today. It's going --
21 it could be a problem. You laugh. It's an issue.

22 MS. FERRIGAN: No, I'm sorry. The computer
23 malfunctioned.

24 MR. FUSCONE: Okay. But, I mean, that's what
25 we're concerned about, and there's no guarantees here.

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1 The bond protects you people, but there is no
2 protection for the residents, none whatsoever, and
3 that's what I'm worried about. Thank you.

4 MR. JANN: Thank you. And after our next speaker
5 we will have Wendy Johnson, please.

6 MS. SCUNGIO: Hi, my name is Nancy Scungio. It's
7 spelled S-c-u-n-g-i-o. I'm here to talk about my
8 neighbors and my family. We have a beautiful area that
9 we live in. It used to be much more beautiful. Long
10 Lake used to be a wonderful lake that my father, my
11 grandfather all fished in. They all hunted that area.
12 They can't anymore, we can't anymore, because of the
13 contamination. I wouldn't dare have my husband or
14 friends of mine fish in that area and feed that to my
15 grandchildren. This is what I'm here for. My
16 grandchildren. I understand you say this is safe. How
17 do you know 100 percent? You don't.

18 My friends live with this every day. They have
19 had their wells contaminated. They have had to have
20 their wells capped. How do we know that's not going to
21 make it to myself? That's not even a mile from my
22 house.

23 Our state is a beautiful fresh water state. We
24 are getting all kinds of waste from other places that
25 should not be coming into our state. Put it in your

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1 own state or your own country. We need to stand up for
2 what we believe in.

3 From what I've heard tonight, I honestly do not
4 have any faith that this will be turned down. I don't
5 have any faith in that. And I should be able to say
6 that my vote, my tax money that pays for everything
7 that is to be used to make this determination, it is
8 not being used to save us, and our children and our
9 grandchildren, and it should be. We should be able to
10 decide whether that well goes in or not, and we are not
11 the ones deciding it. Thank you.

12 MR. JANN: Thank you. After Ms. Johnson I invite
13 Rick Anstett.

14 MR. ANSTETT: I give my time to Wendy.

15 MR. JANN: Okay. Thank you.

16 MS. JOHNSON: Oh, I have nothing written.

17 Anyways, my name is Wendy Johnson. I am a Cedar Creek
18 Township resident, and I have been involved in this
19 from the word go. My property was initially going to
20 be in this RAP area, I was going to lose my 75 foot
21 well, and we have fantastic water. Luckily, the plume
22 was not coming my way, but I am about an eighth of a
23 mile away from any contaminants that may be moving my
24 way.

25 I saw what it did to the people in our area. It

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1 turned them against each other. It got nasty. We were
2 against the county, all the entities. It was
3 ridiculous how nasty it got; recalls, whatever, talking
4 lawsuits. In fact, we were involved in one.

5 But what Mike Solomon had to say, and I'm not even
6 going to try to pronounce your name, I would really
7 love you to listen to them. I have grandchildren
8 growing up in the area. I would like it to remain the
9 way it is. I would like you to tell them no, they
10 cannot have it.

11 And one of my big concerns is if that well is
12 allowed, and I don't have much faith in government that
13 they will watch out for me, that will and can they
14 petition you, which I believe was asked, to bring in
15 more stuff from other country, other states, other
16 areas, and use that well beyond what it is being
17 intended for now? I don't know. I just really would
18 like you to say no.

19 It has been nasty, and you are asking the people
20 to go through it again. You know, this is not a
21 one-time thing. It has been going on for years, and we
22 are, we are sick of it, we are tired of it, and feeling
23 we have to protect ourselves, and hope that you guys
24 will protect us.

25 MR. JANN: Mr. Anstett, would you like to use your

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1 time?

2 MR. ANSTETT: No, I'll hand it over to my wife.

3 MR. JANN: Okay. Thank you. Is it Shane?

4 MRS. ANSTETT: Shani.

5 MR. JANN: Shani Anstett. Thank you.

6 MRS. ANSTETT: Yep.

7 MR. JANN: Thank you. And then after Mrs. Anstett
8 we will have Gary Gremel.

9 MRS. ANSTETT: My name is Shani Anstett, S-h-a-n-i
10 A-n-s-t-e-t-t. I have more of a question than a
11 comment, kind of a combined. The comment was made that
12 as it stands now they are not allowed to bring leachate
13 from other areas, but if that dump takes in garbage
14 from other areas, is that not the same as leachate from
15 other areas? Because that's what that garbage will
16 create, is leachate from other areas, where we don't
17 have control of what's in it.

18 My second comment/question is, it's being labeled
19 as nonhazardous now. Is the Class I well able to be
20 requested to then accept hazardous waste in the future
21 or does that require a different class of well? And I
22 didn't hear that question asked earlier. So those are
23 my comments and questions.

24 MR. JANN: Thank you. Mr. Gremel, followed by
25 Steve Piwowarski.

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1 MR. GREMEL: That's Gary Gremel, G-r-e-m-e-l, a
2 resident of Cedar Creek Township. You know, they
3 applied for the well, the LLC, the company itself,
4 which is a limited liability, so they can't go under
5 American Waste, which kind of covers their big
6 operation, if they applied for it under American Waste,
7 which is still not right. They should do it under
8 their own name.

9 They are expanding that landfill as it is right
10 now. That's why I think they applied for this permit,
11 to do that, because they know there's going to be a
12 continued amount of leachate that's going to be going
13 out through that. Why don't they, if they are going to
14 spend some money on a well, run a direct line? They
15 can do directional boring with the same type of well
16 that sends it right to the wastewater treatment plant,
17 hence no trucking, just run it right direct. That's 10
18 miles they go, 10 miles, that's it.

19 That would eliminate the trucking. There would be
20 no hazards on the road. We would be able to monitor
21 that, just like they have other pipelines and things
22 that they monitor. You know, you having them
23 monitoring, it's like a fox watching the hen house
24 right now. That is not right. I just don't understand
25 it at all, but that's a good way.

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1 And they have proven that the leachate that goes
2 to the treatment plant is the safest, best way to do
3 it, and I know there's going to be more of it. But
4 maybe they are going to up their production at the
5 wastewater treatment plant, or they could put in their
6 own wastewater treatment plant, locate it, and then
7 return it back to the Cedar Creek or something like
8 that. There could be other alternatives. Thank you.

9 MR. JANN: Mr. Piwowarski, followed by Rita
10 McNamara.

11 MR. PIWOWARSKI: I am Steve Piwowarski,
12 P-i-w-o-w-a-r-s-k-i. My comment is the amount of money
13 required for bonding this project is not nearly high
14 enough to re-compensate for the millions of dollars of
15 potential loss that will be shouldered by our
16 grandchildren when this thing fails in the future and
17 starts percolating up through all the shale and all the
18 magic stops that are unknown to you guys and weak spots
19 that are here and there, we just don't know about it
20 yet.

21 I also believe that our current process is not
22 --that our current process for processing leachate is
23 not adequate, but the deep injection well is not a good
24 solution. You know, all that does is drops the problem
25 onto our future citizens' laps. Thank you.

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1 MR. JANN: Thank you. Ms. McNamara, and then
2 after Ms. McNamara I invite John Bennett.

3 MS. MCNAMARA: Rita McNamara, M-c-N-a-m-a-r-a.
4 The question I'd like you to keep in mind tonight is,
5 when do the people matter? We've all seen the charts,
6 the graphs, the computer models. We've been told how
7 safe these wells are. A million in one chance of
8 leaking, according to one industry spokesman, but when
9 you dig a little deeper you find lots of theory and
10 very little hard data.

11 Even though there are thousands of deep injection
12 wells, both Class I and Class II, which are
13 structurally identical in the US, the EPA didn't
14 centralize its data on these wells until 2007. In an
15 update five years later it was found that less than
16 half of the state regulatory agencies had reported into
17 that database, and many of those reports were
18 incomplete.

19 Even with just a fraction of the injection wells
20 reporting, a review of 220,000 well records found more
21 than 7,000 leaking wells and 17,000 violations. These
22 wells are leaked in Arkansas, Ohio, Colorado, Kansas,
23 Tennessee, Louisiana, Kentucky, Wyoming, Pennsylvania,
24 Texas, Oklahoma, California, Florida, West Virginia,
25 and, yes, Michigan. That's why 17 states have banned

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1 them.

2 According to one EPA employee, quote, "We're not
3 going to know what's going on with these wells until
4 somebody's well is contaminated". Little is actually
5 known about deep rock formations, how waste fluids move
6 down there or how to track them. Stefan Finsterle, a
7 leading hydrogeologist at the Lawrence Berkeley
8 National Laboratory, and recognized authority on deep
9 rock formations, said, quote, "There is no certainty to
10 any of this, and whoever tells you the opposite is not
11 telling you the truth. Equipment failures, improper
12 operation, and casing cracks can allow contaminated
13 fluids to percolate to the surface, often through old
14 or unplugged wells".

15 Those of us who live in the risk area around the
16 landfill know a lot about failed computer models. We
17 know a lot about things that are never supposed to
18 happen until they do. If these wells are so safe, let
19 state and federal agencies indemnify every resident
20 within the risk area with a contract that offers a
21 buyout at today's fair market price, if their
22 properties become contaminated. Are they willing to
23 take that one in a million chance?

24 Regulation is strict on paper but poor in
25 practice. Regulators rely mainly on reporting from the

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1 well operators themselves, and American Waste says they
2 plan to pump, quote, nonhazardous landfill leachate
3 into this well. I challenge any of you to drink a
4 quart of it, I've got about 20 seconds left, and then
5 tell me it's not hazardous.

6 Why is American Waste seeking to install an
7 expensive hazardous waste injection well, which is what
8 a Class I well is, if they don't intend eventually to
9 pump in hazardous waste? And will you be doing tankard
10 inspections or overseeing this well? We don't have
11 contaminated groundwater because of leachate hauling.
12 We have contamination because of poisons pumped into
13 the ground when you allowed the landfill to operate
14 unlicensed for nearly 11 years. You've failed us.
15 Please don't do it again.

16 You know these wells leak. By permitting a deep
17 injection well, you become knowing partners in
18 polluting our land and possibly our groundwater.
19 Residents and every one of their representative body
20 oppose this well. It's a threat to health and safety,
21 a threat to property values, and a threat to the
22 county's financial stability. And I ask you again,
23 when do the people matter?

24 MR. JANN: Mr. Bigelow, and then I invite
25 Christopher Crain.

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1 PUBLIC VOICE: Sorry, you said Bigelow?

2 MR. JANN: Bigelow, yeah.

3 PUBLIC VOICE: I thought you said Bennett.

4 MR. JANN: I'm sorry, you are correct, and then
5 Mr. Bigelow.

6 MR. BENNETT: Okay. Jonathan Bennett,
7 B-e-n-n-e-t-t. The community is united against this
8 proposed well, including four official resolutions by
9 local governmental units. Yet, MDEQ and EPA tonight
10 and previously have stated that the permit will be
11 granted if the applicant meets all legal and regulatory
12 criteria.

13 This is the same type of regulatory malpractice
14 that led to the poisoning of thousands of people in
15 Flint. The final report of the governor's Flint
16 Advisory Task Force issued a haunting warning. It
17 concluded that in the MDEQ, quote, "a culture exists in
18 which, quote, technical compliance is considered
19 sufficient to ensure safe drinking water in Michigan.
20 This minimalistic approach to regulatory and oversight
21 responsibility is unacceptable and simply insufficient
22 to the task of public protection," end quote.

23 Why should we trust regulatory agencies when years
24 of their negligence of the landfill led to contaminated
25 drinking water, which traumatized residents? The

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1 proposed injection well will be drilled through the
2 same aquifer from which some of us can still draw
3 unpolluted water, water that has won numerous national
4 and state water quality awards.

5 This proposal re-traumatizes us with a very real
6 possibility that residential wells outside the existing
7 contamination zone will be poisoned, ruining our
8 drinking water and forcing us to use substandard public
9 water, increasing our cost of living, further
10 stigmatizing property values, and causing irreparable
11 harm to the environment.

12 Why should we trust regulations that promise to
13 protect human health and the environment, but which are
14 outdated, rely on self-monitoring and self-reporting,
15 and have been proven inadequate time after time? Why
16 should we trust that what has happened in other places
17 won't happen here?

18 Like in Romulus, residents there successfully
19 fought for 15 years to prevent a deep injection well in
20 their already environmentally compromised community,
21 just like we are. But in 2005 regulators granted the
22 company a permit to drill the well. Within ten months
23 the well failed and leaked. The EPA shut it down, and
24 later discovered the company had violated numerous
25 permit conditions, but it was too little too late.

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1 Why should we trust deep injection well science
2 based on unproven theoretical modeling and conjecture?
3 We don't know what's happening down there. What
4 happened in Romulus is not an anomaly. Many deep
5 injection wells have, in fact, failed and leaked
6 hazardous waste into the environment, some into
7 drinking water, such as in Florida.

8 Finally, why should we trust American Waste or
9 Wexford Water Technologies, LLC? Most failures in deep
10 injection wells resulted from installation and operator
11 errors or outright fraud.

12 Does anyone want to give me --

13 PUBLIC VOICE: You can have my time.

14 MR. BENNETT: Most failures have resulted from
15 installation and operator errors or outright fraud.
16 Why should anyone trust that American Waste will be any
17 safer or honest? This company is not a good neighbor.
18 They are polluting the air with noxious odors; the
19 roads, woods, and private properties with blowing
20 trash; residents' peace of mind with construction noise
21 24 hours a day; and they have inadequate controls over
22 what materials are dumped into their landfill.

23 In its permit application they claim that they
24 will only be injecting nonhazardous landfill leachate,
25 but, in fact, this leachate is a toxic super of garbage

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1 juice made of diluted hazardous chemicals. And now
2 even though they have safe existing alternatives,
3 they're proposing to dump it down what is, essentially
4 a deep latrine where they want us to believe the danger
5 will be out of sight and out of mind.

6 Why would anyone trust that American Waste will be
7 satisfied dumping only landfill leachate? What will
8 stop them from getting exemptions to dispose of other
9 types of hazardous waste in their Class I hazardous
10 waste well? Such as industrial, agriculture, medical,
11 pharmaceutical waste; creating a new income stream for
12 them, but posing further risk of harm to us and the
13 environment.

14 American Waste is asking you to put their economic
15 interest ahead of the interest of the community and
16 environmental protection, but neither they, nor you,
17 can provide any credible assurance the well won't
18 result in harm to human health and the environment.
19 And we are unwilling to be guinea pigs in a failed
20 experiment.

21 I'm almost done. The Flint Advisory Task Force
22 recommended that the MDEQ be, quote, "driven by a
23 mission that is aspirational in nature, so that
24 Michigan can have the safest drinking water in the
25 nation, rather than merely aiming for technical

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1 compliance with regulatory requirements," end quote.

2 We demand, and environmental justice demands, that
3 the MDEQ and the EPA follow this recommendation in our
4 community and deny the permit application. Thank you.

5 MR. JANN: Thank you very much. Just a quick
6 note. I show 17 additional folks that want to speak,
7 which does not reflect those who gave up their time,
8 and that would work out to -- so I will ask folks to
9 keep their time to 3 minutes. If I do call your name
10 and you have given up your time, please let me know.
11 Thank you.

12 MR. CRAIN: Mine will be very short, and then so
13 somebody can take up my time. My name is Christopher
14 Crain. Last name spelled C-r-a-i-n. I am a resident
15 in Cedar Creek Township.

16 First of all, I want to thank you, actually, for
17 having this meeting, and I know sometimes how it seems
18 very aggressive, especially on your end. I've been on
19 that side of the table before, and I do appreciate that
20 you actually provided a meeting that's at a reasonable
21 time that people can attend to, unlike 7:00, 8:00 in
22 the morning on a Saturday, which occurs oftentimes in
23 other states in different situations.

24 I would also like to thank, again, everybody that
25 actually showed up today. Actually, I appreciate your

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1 civic engagement. It actually warms this old
2 paratrooper's heart. I'm very proud of you at this
3 moment, and I'm sure I'll be proud of you as this
4 continues on.

5 That being said, everyone with their statements
6 has provided their feelings, their considerations, and,
7 also, exactly how they feel about this and why this
8 shouldn't go through. I do understand that, you know,
9 also being a resident of this area for quite some time
10 and also my family, part of this trash that's there is
11 my trash. Before, someone said about, you know, not
12 being this person that talks about not in my backyard,
13 I have known that a lot of this trash is coming from
14 other areas, okay, other areas, and there's a fear
15 that, again, they are going to bring in even more
16 material.

17 That being said, my well is just under two miles
18 away from this proposed site, okay. Now, I know that
19 barely falls in within this range that you've actually
20 reviewed, but, unfortunately, there's also another well
21 that's less than a mile away from me, and supposedly
22 this permit will allow them for at least ten years, I
23 believe, at least from the EPA's standpoint, to pump it
24 into the ground. How do I know or not -- how do I know
25 that this well won't give it an opportunity to get to

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1 the groundwater? Just considerations.

2 Also, it's not just for people that are in very
3 close vicinity that are going to sit there and their
4 children drink this water, their grandchildren drink
5 this water, my family members will be drinking this
6 water, okay.

7 But also, I was born in Flint, raised in Flint, I
8 have family still in Flint, okay, and what has occurred
9 there has decimated their lives, okay. And not just
10 those people that are in the very clear area of the
11 city, near the river, et cetera and so forth, but you
12 are talking people in Flint Township with property
13 values, people even in northern Grand Blanc, their
14 property values have collapsed. And because of that,
15 they actually have to worry about how they are going to
16 afford education for their kids. Something else to be
17 considered, all right. It's rings. These rings
18 affect, continue on.

19 And that being said, I would surrender any amount
20 of time left to the next person. Thank you.

21 MR. JANN: Thank you. Mr. Bigelow, followed by
22 Sharyn Blackford. And after Ms. Blackford, Dennis
23 Patrick, followed by Kim Boyle.

24 PUBLIC VOICE: I already gave mine up, but my
25 boyfriend can have my time.

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1 MR. JANN: Thank you.

2 MR. DEXTROM: I'm the guy that fought the landfill
3 for seven years, Ron Dextrom. You can look me up.

4 MR. JANN: Can you spell your last name for me,
5 please?

6 MR. DEXTROM: D-e-x-t-r-o-m. They poisoned us for
7 seven, eight years. We tried to get them to stop it.
8 We had to fight the county, the Cedar Creek Township,
9 everybody else, DEQ. Everybody in the DEQ, they lied.
10 I could name -- you, young lady, there is no clay down
11 there. We went down 500 feet, never found any. So
12 whatever you've got up there, it's wrong.

13 There isn't two aquifers. If there was, we would
14 have had deep wells, wouldn't we? Not only that, but
15 they put 30, 40 test wells in illegally, single case
16 wells. They said they were going down through the clay
17 into the second aquifer to test it. With one well
18 case, that's illegal. You all know that, right? You
19 can't get down to the second one without poisoning it,
20 can you?

21 So you don't know anything. You are standing up
22 there rambling on, but you're getting it all wrong.
23 You don't know, and you weren't here for it.

24 I contacted you people in Chicago. I got letters
25 from you. You said go get them, but nobody from the

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1 EPA come and helped us. Now, why are you sitting up
2 here saying you are protecting us now?

3 They fed that water to my kids, dude, to my kids,
4 and everybody I rented my hall to. They were at
5 weddings drinking the water, with TCE in it and DCE and
6 everything else. Now, how in the world do you expect
7 anybody to stand up here and say, oh, go ahead, put the
8 well in, you are fine?

9 I told the nasty old boys what they were going to
10 do seven years ago, that they were going to haul it in
11 there and dump it under us, because I seen it done in
12 Detroit, and I went around the EPA with the company I
13 was doing it with, just like they are doing it. So the
14 EPA is not going to protect us, and you have no idea
15 where that water is going, they shoot it down there,
16 because water goes places where nobody knows.

17 You can't go on killing people, you will go to
18 hell. You can't say, oh, I go to church every Sunday,
19 but, yeah, I think the water is going to be okay,
20 you'll be fine, go ahead and keep drinking it.

21 Do not allow them to put it there. It will gain
22 nothing except make them more money. Please don't let
23 them allow it, you can't do it, and then go to church
24 on Sunday. Thank you.

25 MR. JANN: Thank you. Karen Turnbull, followed by

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1 Joanne Porter, and then third we will have Wendy
2 Nystrom.

3 MS. TURNBULL: Hello, my name is Karen Turnbull.
4 K-a-r-e-n, Turnbull, T-u-r-n-b-u-l-l, and I'm a member
5 of the Michigan Citizens for Water Conservation. And I
6 believe that we have a disease and a symptom. And the
7 symptoms I know very well, because I live right down
8 the road from where Nestle is taking out our water at
9 the potash mine, and I live, I have a beautiful cottage
10 on Beaver Island, and if pipeline 5 breaks it's in
11 danger.

12 So I know about the DEQ and the EPA, and I know
13 that the disease is, as you said, we follow the law.
14 And I know all of you guys are in this, DEQ and EPA,
15 because you went into this because you care about the
16 environment, but you follow the rules of the people
17 above you. And when Governor Snyder first started he
18 changed the mission statement of the DEQ to say they
19 will grease the skins of corporations that want to do
20 business in Michigan, make it much easier for them, and
21 it has.

22 There's not been an injection well that's been
23 denied, you know, I don't know of one, and I've been
24 studying about it also. And there are laws coming up
25 right now, and there's Senate bills 652, 653 and 654

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1 that will take -- that are -- will take more, will take
2 more from the DEQ. So that you will be able to do
3 less, and it will give more to corporations to change
4 the rules and skip the science. That is really wrong.

5 Now, I would like to remind you that our water is
6 a nonpartisan issue. I don't care what your political
7 background is; you care about your water. That's why I
8 say we really need to pay attention to who we're voting
9 for in November.

10 The EPA has made promises tonight, but guess what,
11 Michigan would like primacy over injection wells;
12 meaning, they want just the DEQ to do the injection
13 wells. That is wrong, I'm sorry, but we need both of
14 you well funded, to be a well funded regulatory agency
15 and not less, which is happening.

16 So altogether, I'd like to say you must deny this
17 permit. All the government agencies, local government
18 agencies here has said they don't want this. And when
19 are we going to talk about we the people? The
20 government is supposed to be between we the people and
21 the corporations. We the people are on the top,
22 corporations are on the bottom, the government is in
23 between, but it's flipped; corporations are on top, we
24 the people are on the bottom, and that is wrong. Thank
25 you.

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1 MR. JANN: All right. Ms. Porter, followed by
2 Ms. Nystrom, and third will be Mr. Osterhoff, if I'm
3 pronouncing that correctly, or Ostrowski.

4 MS. NYSTROM: I'm Wendy.

5 MR. JANN: Excuse me?

6 MS. NYSTROM: I'm Wendy Nystrom.

7 MR. JANN: Okay. So Ms. Porter is not coming
8 forward?

9 PUBLIC VOICE: She's in the bathroom.

10 MR. JANN: Thank you.

11 MS. NYSTROM: Hello. My name is Wendy Nystrom,
12 N-y-s-t-r-o-m, and I'm also with Michigan Citizens for
13 Water Conservation, and I have been going to many of
14 these injection well hearings. And I would like to
15 know -- by the way, injection wells, just to let
16 everybody know, which you all know, are underground
17 toxic dump sites with no containers. And in a state
18 with the most important resource that the world needs,
19 and we need, I cannot understand, we have 1,700
20 injection wells currently that are not -- cannot be
21 monitored properly. We do not need to add any more
22 injection wells.

23 I am calling for the DEQ and the EPA to set a
24 moratorium until we can do a water assessment, because
25 we have lots of poisoned water already in our state,

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1 and we don't want to poison the Great Lakes as well.
2 We need to protect this water for the future, and
3 allowing injection wells does not protect the water for
4 our future. So I'm asking you to, please, so we can do
5 some water studies in this state before we put any more
6 injection wells in. I don't even think you do random
7 testing for water wells where injection wells currently
8 are.

9 We need more laws to protect the water, because
10 I'll tell you something, every business, everything we
11 do, needs water. These people are coming here to our
12 state because we have lots of water. If we put in
13 stricter guidelines for them, they will still come here
14 and provide the jobs. Plus, we can create more jobs
15 with scientists, so that these companies can take care
16 of their waste in a better manner than dumping it
17 underground, I like the gentleman that said underground
18 latrine, because it has to stop. When it goes
19 underground this deep it's out of sight, out of mind.
20 Thank you.

21 MR. JANN: Thank you. Mr. Ostrowski, followed by
22 Ken Boisseau.

23 PUBLIC VOICE: I pass.

24 MR. JANN: Okay. Thank you. The next person will
25 be David Bunce.

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1 MR. OSTROWSKI: Hello, my name is Jeff Ostrowski,
2 and I am with Michigan Citizens for Water Conservation.
3 I do want you to follow the law, and you have to. One
4 of the great laws that you have is the pollution
5 prevent program, the pollution prevention law. And,
6 basically, it states that you should treat pollution,
7 not bury it. The industrial treatment program, that's
8 the collaboration between the state government and the
9 federal government, is probably one of the shining
10 examples of science over time and hard work by lots of
11 people to protect our communities from contamination,
12 toxins and chemicals that, frankly, can hurt us.

13 We're already doing this in this case. This
14 leachate is being processed by the very program you set
15 up. Continue to do that.

16 I'm reminded of two movies back in the '70s that I
17 can't seem to get rid of, but one is A Fistful of
18 Dollars, and the other one is For a Few Dollars More,
19 okay.

20 So what you are doing is spreading risk for that
21 money, and you are spreading the risk all over this
22 community, and there is no assurance that it will, in
23 fact, work. And the trust that you have that it won't
24 work -- or that it will work comes back to bite them
25 very hard if, in fact, it doesn't.

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1 You already have the problem solved, continue to
2 do that, and deny the permit. Thank you very much.

3 MR. JANN: Thank you. Apologies if I'm
4 mispronouncing, David Bunce or Bonce, followed by Diane
5 Gurkin.

6 PUBLIC VOICE: McGuckin.

7 MR. JANN: McGuckin.

8 PUBLIC VOICE: I'm passing.

9 MR. JANN: Okay. Thank you. Then let me move on
10 to Mr. Chuck Valkner.

11 PUBLIC VOICE: I'll pass.

12 MR. JANN: Okay. Thank you. Skip Goerner, Bob
13 Lohman. Eleanor Sosenko. That's a combination of not
14 being able to read and pronunciation.

15 Okay. And that would be the last person. We do
16 have 5 minutes remaining. Is there a person who wants
17 to speak but did not sign up? This gentleman, please
18 share your comments.

19 MR. MCHABB: My name is Fred McHabb, M-c-H-a-b-b,
20 Cedar Creek Township. It's not the, wonder if they are
21 going to bring in more leachate. It's not if they are
22 going to bring it, but you know they are going to bring
23 it in, and by bringing it in they are going to be
24 putting more down there. Is that going to -- are they
25 going to have to increase the pump, which then will

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1 start fracking? All the leachate will come up to the
2 top. That was my comment. Thank you very much.

3 MR. JANN: Okay. Thank you. Actually, I should
4 have asked. Is there anyone who did sign up to speak
5 but whose name I did not call?

6 Okay. And is there a second person who now has
7 decided -- there are such folks? Okay. Please come
8 forward. There's two.

9 MS. HALLETT: My name is Mary Hallett,
10 H-a-l-l-e-t-t. I am Cedar Creek Township treasurer.
11 I've been with the issue with this landfill since day
12 one. I've been treasurer for 17 years. This landfill
13 has created a lot of turmoil, a lot of problems, a lot
14 of nightmares for the residents of this township.

15 I am very much against an injection well. I feel
16 it will only cause more problems. I don't feel it is
17 safer. I've done a lot, a lot of research. There's
18 all this possibility of spills in holding tanks. Where
19 do you think that's going to go? Down into the ground,
20 down into the water, and the water in that area. And
21 what's going to happen with all the drilling? Is that
22 going to kind of vibrate and make the plume move
23 further? I mean, any turmoil into that soil I would
24 think would make the water plume move, which would then
25 increase the RAP area, which would then increase many

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1 more residents.

2 I am against this. I know I've already emailed
3 you guys, but I thought I would speak out again tonight
4 and let you know that I am against this.

5 MR. JANN: Thank you.

6 MR. COLEMAN: My name is Adam Coleman. I live in
7 Manton, Michigan. My mother, Nancy, was here earlier,
8 and I really don't understand how this is okay. Look
9 in this room, human beings. Human beings are going to
10 be affected, that are going to be saddened, ticked off,
11 if you go through with this.

12 I'm a football coach in this area. So not only do
13 I have concern for my, you know, nieces, nephews and
14 some day when I have kids and grandkids, but I have
15 concerns about, you know, football players as head
16 coach, every single one.

17 I cannot tell you how strongly I believe against
18 this well, and I implore you to listen to every little
19 comment that was made tonight. I implore you to read
20 every email, every mail that you have gotten and really
21 consider this. I have not heard one positive thing
22 from this community about this well. So please take
23 that into consideration, because we don't want it.
24 Thank you.

25 MR. JANN: Thank you very much. We are at time,

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1 and so I'd like to thank everyone, once again, for your
2 comments, thank you for your time commitment in joining
3 us here tonight, and that will conclude our hearing.
4 Thank you very much.

5 As I mentioned early on, the EPA folks will remain
6 for awhile, and the DEQ folks may as well, if you have
7 questions.

8

9 (At 9:00 p.m. hearing concluded)

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1 CERTIFICATION OF COURT REPORTER AND NOTARY PUBLIC

2

3

4 STATE OF MICHIGAN)

5 COUNTY OF WEXFORD)

6

7 I certify that this transcript, consisting of 58
8 pages, is a complete, true, and correct transcript of
9 the proceedings and testimony taken in this case on
10 March 21, 2018.

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Jane Rose Reporting
KATHLEEN TULICK, CSR 4806

My commission expires: 6/10/18



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